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FILED _____

FILE #: 20936

SUPREME COURT of the STATE OF NEW YORK
COUNTY OF NEW YORK-----X
JUAN M ARIAS,

Plaintiff(s),

-against-

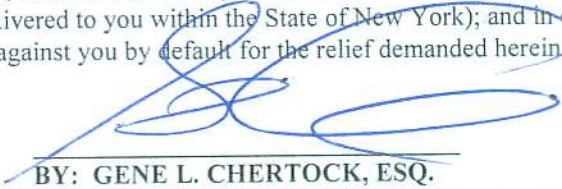
THE CITY OF NEW YORK AND NEW YORK CITY
POLICE DEPARTMENT, JOHN FERRARA, ZULFIQAR
AHMED, WILLIAM CHAN, DIONISIO MORELLI and
JOSIE SOVOLJ,Defendant(s)
-----X

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein

Dated: November 21, 2013

Defendant's Addresses:


BY: GENE L. CHERTOCK, ESQ.

This SUMMONS AND COMPLAINT and the papers on which it is based, are certified pursuant to Section 130-1.1-a of the rules of the Chief Administrator (22NYCRR)

SUBIN ASSOCIATES, LLPAttorney(s) for Plaintiff(s)
Office and Post Office Address
150 Broadway
New York, New York 10038
(212) 285-3800Notice: The object of this action is to recover for personal injury
due to defendant(s) negligence

The relief sought is Monetary Damages

Upon your failure to appear, judgment will be taken against you by default with interest from 8/3/2012 and the costs of this action

DEFENDANT(S) ADDRESS(ES)NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10013THE CITY OF NEW YORK
100 Church Street
New York, NY 10007**[SEE RIDER FOR ADDITIONAL DEFENDANTS]**

JOHN FERRARA
C/O 25th Precinct
120 East 119th Street
New York, NY, 10035-3921

ZULFIQAR AHMED
C/O 25th Precinct
120 East 119th Street
New York, NY, 10035-3921

WILLIAM CHAN
C/O 25th Precinct
120 East 119th Street
New York, NY, 10035-3921

DIONISIO MORELLI
C/O 25th Precinct
120 East 119th Street
New York, NY, 10035-3921

JOSIE SOVOLJ,
C/O 25th Precinct
120 East 119th Street
New York, NY, 10035-3921

FILE #: 20936

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUAN M ARIAS,

VERIFIED COMPLAINT

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, JOHN FERRARA, ZULFIQAR
AHMED, WILLIAM CHAN, DIONISIO MORELLI and
JOSIE SOVOLJ.

Defendant(s)

-----X

Plaintiff, complaining of the defendants, by his attorney, upon information and belief,
respectfully allege(s):

AS AND FOR A FIRST CAUSE OF ACTION IN BEHALF
OF PLAINTIFF JUAN ARIAS

1. That at all the times herein mentioned the defendant THE CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
2. That at all the times herein mentioned the defendant NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "NYCPD," was and still is a public benefit corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all the times herein mentioned, the defendant JOHN FERRARA, was and still is a police officer employed by defendant CITY and NYCPD.
4. That at all the times herein mentioned, the defendant ZULFIQAR AHMED, was and still is a police officer employed by defendant CITY and NYCPD.
5. That at all the times herein mentioned, the defendant WILLIAM CHAN, was and still is a police officer employed by defendant CITY and NYCPD.

6. That at all the times herein mentioned, the defendant DIONISIO MORELLI, was and still is a police officer employed by defendant CITY and NYCPD.

7. That at all the times herein mentioned, the defendant JOSIE SOVOLJ, was and still is a police officer employed by defendant CITY and NYCPD.

8. That notice of plaintiff's claim and notice of intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained was duly filed by the plaintiff with the Corporation Counsel of the defendant CITY and with the Comptroller of the defendant CITY and with the Legal Department of the defendant NYCPD and upon the defendants, within 90 days after the cause of action herein accrued.

9. That pursuant to notice give by the defendants a hearing was held.

10. That more than 30 days have elapsed since the demand for claim upon which this action was founded was presented to the Comptroller of the defendant CITY and the Legal Department of the defendant NYCPD, for adjustment and that they have neglected and refused to make adjustment or payment thereof for said period of 30 days after such presentation, and that this action is commenced within one year after the cause of action accrued.

11. That on or about 8/3/2012, the defendant police officers did verbally and physically abuse plaintiff and did commit an assault and battery upon plaintiff, causing severe personal injuries, and serious bodily harm.

12. That on or about 8/3/2012, the defendant police officers did handcuff, falsely arrest, falsely charge, unlawfully detained and maliciously prosecuted plaintiff with various penal law violations.

13. That as a result, plaintiff was held in jail until the completion of his trial.

14. That all charges against plaintiff arising out of the aforementioned incident have now been dismissed by the Court as plaintiff was acquitted by the jury.

15. That the aforesaid acts of defendants were willful, intentional and unwarranted and without any just cause or provocation.

16. That at all the times herein mentioned, the defendant JOHN FERRARA, was on

duty as a police officer for defendants CITY and NYCPD.

17. That at all the times herein mentioned, the defendant ZULFIQAR AHMED, was on duty as a police officer for defendants CITY and NYCPD.

18. That at all the times herein mentioned, the defendant WILLIAM CHAN, was on duty as a police officer for defendants CITY and NYCPD.

19. That at all the times herein mentioned, the defendant DIONISIO MORELLI, was on duty as a police officer for defendants CITY and NYCPD.

20. That at all the times herein mentioned, the defendant JOSIE SOVOLJ, was on duty as a police officer for defendants CITY and NYCPD.

21. That at all the times herein mentioned, the defendant JOHN FERRARA, was in uniform as a police officer for defendants CITY and NYCPD.

22. That at all the times herein mentioned, the defendant ZULFIQAR AHMED, was in uniform as a police officer for defendants CITY and NYCPD.

23. That at all the times herein mentioned, the defendant WILLIAM CHAN, was in uniform as a police officer for defendants CITY and NYCPD.

24. That at all the times herein mentioned, the defendant DIONISIO MORELLI, was in uniform as a police officer for defendants CITY and NYCPD.

25. That at all the times herein mentioned, the defendant JOSIE SOVOLJ, was in uniform as a police officer for defendants CITY and NYCPD.

26. That at all the times herein mentioned, the defendant JOHN FERRARA, was acting within the scope of his employment as a police officer for defendants CITY and NYCPD.

27. That at all the times herein mentioned, the defendant ZULFIQAR AHMED, was acting within the scope of his employment as a police officer for defendants CITY and NYCPD.

28. That at all the times herein mentioned, the defendant WILLIAM CHAN, was acting within the scope of his employment as a police officer for defendants CITY and NYCPD.

29. That at all the times herein mentioned, the defendant DIONISIO MORELLI, was acting within the scope of his employment as a police officer for defendants CITY and NYCPD.

30. That at all the times herein mentioned, the defendant JOSIE SOVOLJ, was acting within the scope of his employment as a police officer for defendants CITY and NYCPD.

31. That the defendants CITY, NYCPD, their agents, servants and/or employees and the named individual police officers were negligent in performing their duties; in failing to protect plaintiff from actual and imminent harm, in hiring and/or retaining in its employ personnel who are violent and/or possess violent propensities, persons, who would assault and commit battery on law abiding individuals, law enforcement personnel who make arrest and allege crimes without reasonable cause; in failing to adequately train and supervise its personnel; in causing, allowing and/or permitting unwarranted use of force against claimant; and in causing, allowing or permitting its personnel to improperly effectuate arrest, all in violation of statutes, ordinances and regulations.

32. That at all the times herein mentioned, the actions of the defendants were negligent and not in accordance with proper police procedures and regulations.

33. That said occurrence and the resulting personal injuries to the said plaintiff were caused through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

34. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries: has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as she has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SECOND CAUSE OF ACTION
IN BEHALF OF PLAINTIFF JUAN M. ARIAS

35. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

36. That on or about 8/3/2012, the defendant police officers did verbally, physically, intentionally, maliciously and deliberately abuse the plaintiff, with neither provocation nor privilege, and did commit an assault and battery upon plaintiff, causing severe personal injuries and serious and permanent bodily harm to the plaintiff.

37. That at the time of such malicious prosecution, the defendant police officers were employees of the defendants and was acting as the defendants' agent in doing the acts complained of herein and was acting within the scope of his authority and while he was acting or attempting to be acting in the defendant's interest.

38. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as she has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A THIRD CAUSE OF ACTION
IN BEHALF OF PLAINTIFF JUAN M. ARIAS

39. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

40. That or about 8/3/2012, the defendant police officers were negligent in causing and allowing and/or permitting their body or parts thereof to come in contact with the person of the plaintiff in such a manner as to cause severe personal injuries and serious and permanent

bodily harm to the plaintiff .

41. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock. and mental anguish and suffering; has become and still continues to be sick. sore, and still continues to be sick. sore, lame and disabled; has been as she has been informed and verily believes. permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties: vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FOURTH CAUSE OF ACTION
IN BEHALF OF PLAINTIFF JUAN M. ARIAS

42. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

43. That on or about 8/3/2012, the defendant police officers alleged that they had been criminally and feloniously assaulted by the plaintiff and/or that plaintiff had committed crimes against a civilian victim. thereupon without warrant, probable cause or sufficient justification, arresting the plaintiff on the alleged charges and restraining and booking the plaintiff and depriving the plaintiff JUAN M. ARIAS of his liberty.

44. That the charges filed by the defendant police officers were false and unsupported by the facts or the evidence.

45. That the defendant police officers knew that the charges were false and unsupported by the facts or the evidence.

46. That in making these charges and in causing the arrest and detention of the plaintiff JUAN M. ARIAS. the defendant police officers acted maliciously and wrongfully and with improper intent to injure the plaintiff and with reckless disregard of the safety of the plaintiff.

47. That the charges brought by the defendant police officers were dismissed by the Court after plaintiff was acquitted by the jury.

48. That at the time of such malicious prosecution, the defendant police officers were employees of the defendants and were acting as the defendants' agent in doing the acts complained of herein and were acting within the scope of their authority and while they were acting or attempting to be acting in the defendants' interest.

49. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled: has been as she has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FIFTH CAUSE OF ACTION
IN BEHALF OF PLAINTIFF JUAN M. ARIAS

50. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

51. That the plaintiff JUAN M. ARIAS was charged by the defendant police officers with felony robbery and/or other felonious crimes.

52. That this arrest was illegal and without basis in fact or authority of law.

53. That plaintiff JUAN M. ARIAS was deprived of his liberty for over 9 months, was held in the detention cells of the police station and then held in the detention cells of Central Booking and then imprisoned in Rikers until the conclusion of his trial.

54. As a result of the false arrest and illegal imprisonment which the plaintiff suffered, plaintiff's health was impaired and plaintiff suffered great mental distress.

55. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as she has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SIXTH CAUSE OF ACTION
IN BEHALF OF PLAINTIFF JUAN M. ARIAS

56. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

57. That on or about 8/3/2012, the defendant police officers' acts constituted a willful and wanton disregard of the safety and Civil and constitutional rights of the plaintiff.

58. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries: has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as she has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES PREDICATED ON FALSE ARREST AND

FALSE IMPRISONMENT

59. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

60. That as a result of the aforementioned described actions, including the use of excessive physical force and negligent infliction of emotional harm upon the plaintiff and his extended incarceration, the defendants, their agents, servants and/or employees, deprived plaintiff of the *rights, privileges and immunities* secured by the constitution and laws of the United States and Fourteenth Amendment.

61. As a result of the aforescribed actions, these defendants individually deprived plaintiff of the *right to be free from unreasonable seizures* secured by the constitution and laws of the United States and Fourteenth Amendment.

62. As a result of the aforescribed actions, the defendants individually deprived plaintiff of his *right to liberty without due process* of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

63. As a result of the aforescribed actions, the defendants individually deprived plaintiff of his *Equal Protection* under the law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

64. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. 1981, 1983, 1985 and 1986.

65. That it was necessary for plaintiff to hire the undersigned attorney to file this lawsuit and upon judgment, plaintiff is entitled to an award of attorney's fees under 42 UY.S.C. § 1988(b).

66. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as she has been informed and verily believes,

permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A EIGHTH CAUSE OF ACTION
FOR VIOLATION OF PLAINTIFF JUAN M. ARIAS' RIGHT TO BE
FREE FROM UNREASONABLE SEARCHES AND SEIZURES
PREDICATED ON FALSE ARREST AND FALSE IMPRISONMENT

67. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

68. On 8/3/2012, plaintiff suffered severe injuries and trauma to head, neck, back, wrists, body limbs, emotional distress, physical, psychological and emotional disturbances when the defendant JOHN FERRARA attacked plaintiff, threw him to the ground without provocation at the location 124TH Street and Park Avenue, New York, New York.

69. Defendant used unreasonable, unnecessary and excessive force while arresting and detaining plaintiff.

70. That as a result of the aforescribed actions, including the use of excessive physical force and negligent infliction of emotional harm upon the plaintiff, the defendant JOHN FERRARA deprived plaintiff of the *rights, privileges and immunities* secured by the constitution and laws of the United States and Fourteenth Amendment.

71. As a result of the aforescribed actions, this defendant individually deprived plaintiff of the *right to be free from unreasonable seizures* secured by the constitution of the laws of the United States and Fourth and Fourteenth Amendments.

72. As a result of the aforescribed actions, the defendant individually deprived plaintiff of his *right to liberty without due process* of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

73. The amount and type of the physical force used upon plaintiff by defendant JOHN FERRARA was unnecessary, improper, excessive and not reasonably justified under any circumstances.

74. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. 1981, 1983, 1985 and 1986.

75. The aforementioned acts of the defendant were intentional, willful malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being.

76. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation embarrassment, disgrace and deprivation of plaintiff's constitutional rights.

77. That it was necessary for the plaintiff to hire the undersigned attorney to file this lawsuit and upon judgment, plaintiff is entitled to an award of attorney's fees under 42 U.S.C. § 1988(b).

78. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which.

WHEREFORE, the plaintiff demands judgment against the defendants on the FIRST Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court; plaintiff demands judgment against the defendants on the SECOND Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, plaintiff demands judgment

against the defendants on the THIRD Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants on the FOURTH Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants on the FIFTH Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants on the SIXTH Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants on the SEVENTH Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants on the EIGHTH Cause of Action in an amount which exceeds the jurisdictional limits of all lower courts and which warrants the jurisdiction of this Court, together with the costs and disbursements of each cause of action.

Yours, etc.

SUBIN ASSOCIATES, LLP
Attorneys for Plaintiffs
150 Broadway
New York, New York 10038

STATE OF NEW YORK)
COUNTY OF KINGS)

The undersigned, affirms that the following statements are true under the penalties of perjury.

That deponent is the plaintiff in the within action: that deponent has read the foregoing **COMPLAINT** and knows the contents thereof; that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes it to be true. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Information and investigation in the file.

This SUMMONS AND COMPLAINT and the papers on which it is based, are certified pursuant to Section 130-1.1-a of the rules of the Chief Administrator (22NYCRR)

JUAN ARIAS

SWORN TO BEFORE ME THIS
DAY OF

, 2013

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JUAN M ARIAS,

Plaintiff(s).

-against-

THE CITY OF NEW YORK AND NEW YORK POLCE DEPARTMENT

Defendant(s)

SUMMONS AND COMPLAINT

SUBIN ASSOCIATES, L.L.P.

Attorneys for Plaintiff(s)
Office and Post Office Address, Telephone
150 Broadway, 23rd Floor
New York, NY 10038
Telephone (212) 285-3800

WE DO NOT ACCEPT SERVICE BY ELECTRONIC TRANSMISSION

To:
Attorney(s) for

Service of a copy of the within is hereby admitted
Dated: ,

.....
Attorney(s) for

PLEASE TAKE NOTICE

☐ That the within is a (certified) true copy of an ORDER entered in the office NOTICE OF of the clerk of the within named court on , 20__.

ENTRY

☐ That an Order of which the within is a true copy will be presented for NOTICE OF settle to the Hon.one of the judges of the within

SETTLEMENT named court,
at
on , 20__ , at 10:00 a.m.

Dated:

Attorney(s) for Defendant(s)

SUBIN ASSOCIATES, L.L.P.
Attorneys for plaintiff(s)
150 Broadway, 23rd Floor
New York, NY 10038
(212) 285-3800